

TANGZO

RESTAURANT PARTNER FOOD SAFETY, FSSAI COMPLIANCE, INDEMNITY & DELIVERY RESPONSIBILITY AGREEMENT

Ref: TNG-FSIA-2026-V2

IMPORTANT: This Agreement constitutes a binding electronic contract between the Restaurant and Tangzo upon electronic acceptance (clicking "I Agree"). By checking the agreement box or completing registration on the Tangzo platform, the Restaurant expressly acknowledges and agrees that it assumes sole, exclusive, and absolute liability for all food safety, quality, hygiene, preparation, FSSAI compliance, and product defects, and completely indemnifies and holds harmless Tangzo against any claims, damages, regulatory penalties, or legal liabilities whatsoever.

PARTIES & EFFECTIVE Date

This Restaurant Partner Food Safety, FSSAI Compliance, Indemnity & Delivery Responsibility Agreement ("Agreement") is entered into as of the date and time of electronic acceptance ("Effective Date") by and between:

1. PLATFORM OPERATOR: ASM WEB TECH PVT LTD, operating the online food ordering, payment facilitation, and delivery-coordination platform under the brand name "Tangzo" (hereinafter "Tangzo", "Company" or "Platform").
2. RESTAURANT / MERCHANT: Any food business operator, sole proprietor, partnership firm, LLP, or company that registers, lists its outlet, or accepts orders through the Tangzo platform (hereinafter "Restaurant" or "Merchant").

1. Nature of Relationship & Absolute Limitation of Tangzo's Role

1.1. Pure Technology & Marketplace Role: Tangzo operates strictly as an independent digital intermediary providing software applications, payment facilitation, and logistical coordination connecting customers with independent restaurant partners. Tangzo is not a manufacturer, processor, cook, packer, labeler, seller, or distributor of food.

1.2. Restaurant as Sole Provider: The Restaurant is an independent food business operator (FBO) and retains total, exclusive, and unmitigated control over its kitchen, premises, staff, raw materials, ingredients, recipes, cooking methods, food safety protocols, packaging materials, and compliance systems.

1.3. No Transfer of Responsibility: The listing of food items on the Tangzo platform, the processing of payments by Tangzo, or the physical collection and transportation of packaged food by Tangzo's delivery personnel shall not transfer, dilute, or share any food-safety, quality, preparation, or regulatory responsibility from the Restaurant to Tangzo.

2. FSSAI License, Registration & Regulatory Compliance

2.1. Continuous Warranty of Licensure: The Restaurant represents, warrants, and covenants that it holds a valid, active, and unexpired FSSAI license or registration covering its exact premises, food categories, and business volume, and shall continuously maintain the same throughout the term of its association with Tangzo.

2.2. Immediate Notification of Regulatory Action: The Restaurant shall immediately notify Tangzo in writing within twenty-four (24) hours of any suspension, cancellation, expiration, restriction, modification, inspection notice, prosecution, food recall, or consumer complaint issued by the FSSAI, municipal authorities, or any other statutory body.

2.3. Full Compliance Burden on Restaurant: The Restaurant shall bear 100% of the legal, statutory, and financial responsibility for complying with the Food Safety and Standards Act, 2006, all applicable FSSAI regulations, hygiene standards, municipal health codes, packaging mandates, and labeling requirements.

3. Restaurant's Exclusive Operational Responsibility for Food

The Restaurant unconditionally guarantees, warrants, and agrees that:

- Only safe, wholesome, fresh, legally compliant, unadulterated, and fit-for-human-consumption food shall be prepared and supplied through Tangzo.
- All ingredients shall be lawfully procured from licensed vendors, correctly stored, and fully traceable.
- The Restaurant shall completely prevent contamination, cross-contamination, pest infestation, foreign objects (e.g., hair, insects, plastic, metal), chemical residues, spoilage, and allergen cross-contact.
- Food shall be cooked, prepared, held, and packaged in hygienic, food-grade containers that are securely sealed and tamper-evident prior to handover.
- The Restaurant shall provide accurate menu descriptions, pricing, ingredient lists, portion sizes, vegetarian/non-vegetarian classifications, and allergen declarations. Under no circumstances shall expired, stale, or sub-standard food be handed over.

4. Order Preparation, Inspection & Handover

4.1. Mandatory Pre-Handover Inspection: Before handing over any order to Tangzo's delivery personnel, the Restaurant's authorized staff must independently inspect and verify the food items for complete accuracy, correct quantity, proper sealing, and overall integrity.

4.2. Sealing & Tamper Evidence: The Restaurant shall ensure that all food packages are tightly sealed using tamper-evident tape or packaging. Once the sealed package is handed over to Tangzo, the Restaurant warrants that the food is fully prepared, safe, complete, and compliant.

4.3. Conclusive Evidence of Default: In the event of a customer dispute, complaint, or investigation

regarding missing items, incorrect food, foreign objects, spoilage, or contamination, records maintained by Tangzo (including customer photographs, time stamps, delivery partner logs, and communication records) shall be treated as primary evidence establishing that the defect originated within Restaurant-Controlled Activities, unless proven otherwise by incontrovertible evidence produced by the Restaurant.

5. Absolute Allocation of Liability & Indemnity in Favor of Tangzo

5.1. Complete Liability Shift: To the maximum extent permitted by applicable law, Tangzo shall bear zero liability for any claims, damages, customer illnesses, food poisoning, allergic reactions, foreign object complaints, statutory penalties, or legal fees arising from or connected to the food supplied by the Restaurant. All liability rests exclusively with the Restaurant.

5.2. Comprehensive Indemnity: The Restaurant shall unconditionally defend, indemnify, and hold harmless Tangzo (ASM Web Tech Pvt Ltd), its directors, officers, employees, agents, and delivery partners from and against any and all third-party claims, consumer forum complaints, legal suits, police investigations, regulatory actions, fines, penalties, losses, damages, refunds, and reasonable legal expenses (including attorney fees) arising out of or resulting from:

- a) Any breach by the Restaurant of its FSSAI license, registration, or statutory food laws;
- b) Any food safety incident, contamination, adulteration, foreign object inclusion, allergic reaction, or food poisoning allegation connected to the Restaurant's food or premises;
- c) Any inaccurate, misleading, or incomplete menu description, pricing, or allergen information provided by the Restaurant;
- d) Any act, omission, negligence, fraud, or willful misconduct by the Restaurant, its owners, kitchen staff, suppliers, or agents;
- e) Any product recall, regulatory seizure, or health department closure affecting the Restaurant.

5.3. Survival of Indemnity: The indemnification obligations under this Clause shall survive the termination or deactivation of the Restaurant's account on Tangzo.

6. Refunds, Customer Complaints & Financial Recovery

6.1. Right to Chargeback and Recover: If a customer raises a complaint or demands a refund due to incorrect, incomplete, spoiled, contaminated, or unsafe food, or due to foreign objects found in an order supplied by the Restaurant, Tangzo reserves the absolute right to immediately issue a refund or credit to the customer, and fully recover, deduct, or set-off the entire refund amount, associated compensation, and administrative costs directly from the Restaurant's pending payouts or security deposits.

6.2. Immediate Menu Suspension: Tangzo may immediately suspend, delist, or block the Restaurant or specific menu items from the platform pending investigation into any food safety complaint or regulatory notice, without incurring any liability or compensation obligation towards the Restaurant.

7. Scope of Tangzo's Delivery Role

7.1. Neutral Logistics Provider: Tangzo's delivery service is limited strictly to transporting the Restaurant's already-prepared, fully sealed packages from the Restaurant outlet to the customer's delivery address.

7.2. No Alteration of Food: Tangzo delivery personnel do not open, inspect, tamper with, cook, modify, or interfere with the contents of the sealed food packages provided by the Restaurant.

7.3. Limited Delivery Liability: Tangzo shall only be responsible for direct, proven transit damage (such as physical dropping or crushing of the outer package by a delivery agent) occurring strictly after lawful handover, and such liability shall be strictly limited to the cost of the order, excluding any consequential food safety or health-related liability.

8. Limitation of Tangzo's Liability

To the maximum extent permitted under Indian law, Tangzo's aggregate cumulative liability to the Restaurant under this Agreement or any related matter shall be strictly limited to the net commission actually retained by Tangzo from the Restaurant during the single (1) calendar month immediately preceding the event giving rise to the claim. Tangzo shall not be liable for any indirect, incidental, special, or consequential damages, loss of profits, or business interruption.

9. Suspension, Delisting & Termination

Tangzo may immediately terminate this Agreement, suspend the Restaurant's account, or delist its outlet at any time without prior notice if:

- The Restaurant's FSSAI license expires, is suspended, cancelled, or found to be invalid/fraudulent;
- The Restaurant compromises food safety, hygiene standards, or consumer health;
- The Restaurant breaches any term of this Agreement.

10. Governing Law & Dispute Resolution

10.1. Governing Law: This Agreement shall be governed by and construed in accordance with the laws of India.

10.2. Jurisdiction & Arbitration: Any dispute, controversy, or claim arising out of or relating to this Agreement shall be referred to binding arbitration by a sole arbitrator appointed by Tangzo. The seat, venue, and legal jurisdiction for all proceedings shall be exclusively in Gautam Buddha Nagar (Noida / Greater Noida), Uttar Pradesh.

11. Electronic Acceptance & Binding Effect

By clicking the "I Agree", "Register", or equivalent confirmation button during the digital onboarding process, or by continuing to list menu items and process orders on Tangzo, the

Restaurant explicitly acknowledges that it has read, understood, and unconditionally agreed to all terms of this Agreement, and that such electronic acceptance constitutes a legally valid and binding signature under the Information Technology Act, 2000.